follow. Otherwise, there would be one main judgment.'[8] This was interpreted as suggesting that the court would pronounce its decision early if the dissolution was held unconstitutional, and would do so later if the dissolution was upheld.

As it happened, the Supreme Court issued a brief order one week later, the last day before the court closed for the Dussehra break, with detailed reasons to follow. The timing of the decision aligned with the expected outcome. The court held that the President's proclamation dissolving the Bihar Assembly was unconstitutional. However, more surprising than the outcome was the remedy. Despite the unconstitutionality of the proclamation, the court chose not to reinstate the assembly since election preparations were afoot. As the next elections had already been planned and considerable resources had been expended, no legal remedy was made available to those that filed the proceedings. (One op-ed at the time described this as akin to the court issuing a 'conviction without a sentence'.[9]) However, what the BJP and the JDU were denied in terms of legal remedies was compensated through the political traction that they secured upon the court's endorsement of their position. Conversely, the court's decision was seen as a rebuke to the governor and the President, and by implication, the UPA government.

As would have been expected, the NDA demanded the removal or resignation of Governor Buta Singh following the court's decision. Four days after the court's decision, Singh travelled to Delhi (ostensibly on a personal trip to visit ailing relatives). However, there was widespread speculation that Singh used the opportunity to meet with leaders from the UPA government and the Congress party to consider an appropriate response to the court's decision. Media reports suggested that the leadership seriously considered asking the governor to resign.[10] However, following deliberations, it was determined that Buta Singh would not be asked to resign and would continue in office at least until the Supreme Court issued the detailed reasons for its decision. The Congress leadership arrived at this conclusion after considering the possibility of Singh's resignation being